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The State Executive consists of the Chief Minister, the Council of Ministers and the Governor. It follows the same Parliamentary pattern as followed by the Union Government with the Governor acting as a link between the Union in certain matters. This has been done to maintain the unitary spirit in a federal country. The Governor plays the twofold role of being the constitutional head of the State and also being a link between the state government and the centre. He acts on the advice of the Council of Ministers and all executive actions are taken in his name.

❖ **The Governor**

Article 153 of the Indian Constitution provides for every State to have a Governor. The President is the nominal head of the republic, the Governor is the nominal head of the State. This means that he has powers and functions similar to the President of India at the State level, with the real power lying in the hands of the State Chief Minister and the Council of Ministers. Further, the 7th Constitution Amendment Act of 1956 has added Article 153 which provides for the same person to act as the Governor of two or more States simultaneously. The term of office of the Governor is 5 years.

Appointment, Tenure and Removal of a Governor

Appointment of a Governor is talked about under Article 155 and its removal, tenure and removal are provided under Article 156. It states that the President appoints the Governor by warrant under his hand and seal i.e., bearing his seal and signature. The Governor shall hold office as long as he enjoys the pleasure of the President. The President may remove the Governor by writing under his hand i.e., a written letter undersigned by the President. In accordance with the foregoing provisions of this article, the term of office shall be five years from the date on which he enters upon his office. The Governor shall continue to hold office until his successor enters upon his office or the expiration of his term.

person holding this position is appointed Governor, anyone who previously held office.

- He is provided with such allowances, emoluments and privileges which by law and in case these provisions are absent, they are provided to him.
- The above mentioned allowances, emoluments and privileges would continue during his term. Further, if two states come under him/her, such expenses are borne by them in accordance with the President's decision.

Oath

Every Governor, before entering his office is bound to take an oath before the High Court or the senior most judge, in the former's absence. This is provided in Article 159.

As per Articles 155 & 156 of the Constitution, the Governor is an appointee who holds office as long as he continues to enjoy his pleasure. This essentially means that the Governor can hold his office for the prescribed term of 5 years if he continues to enjoy the pleasure of the President. Article 74 states that the President is bound to act on the advice of the Council of Ministers. Therefore, the President's decision to appoint or remove the Governor in effect, is actually the decision of the Centre.

Powers of Governors

The position, power and functions of the Governor are analogous to those of the President. The powers are discussed below under four heads.

Executive power

Under Article 154(1), the executive powers have been vested to the Governor. He can exercise them either directly himself or indirectly through his Council of Ministers.

- As such, the Governor makes important appointments of the state public service, and Council of Ministers, Chairman and members of State Public Service Commission, election commissioner, Advocate General, District judges and Universities.

Legislative power

- The Governor has the power to summon and prorogue both houses of the State Legislature and make sure that the maximum gap between the two sessions of the house does not exceed six months.
- Under Article 192, the Governor has the authority to disqualify any member of the State Legislature with the conditions given under Article 191.
- The Governor has to address the state legislature at the beginning of each year and after the state assembly elections.
- The Governor can hold a bill and send it to the President for his consideration. The Governor can either give assent to a bill or withhold it or send it back (except for money bills).

Pardoning power

According to Article 161, the Governor can grant pardons, reprieves, remit or commute the sentence of any person convicted of any offence relating to matters under the state executive power, exception being offences relating to matters of martial law. However, in cases where a death penalty has been granted the Governor can commute it.

❖ The Council of Ministers

The Council of Ministers is appointed by the Governor. It along with the Governor exercises the real power and implements policies and rules in the State. The Governor is thus the formal executive head of the State.

Maximum size of ministries

The total number of Ministers, including the Chief Minister, in the Council of Ministers of the State shall not exceed fifteen per cent of the total number of members of the Legislative Assembly of that State, provided that the number of ministers, including the Chief Minister, in the Council of Ministers of the State shall not be less than twelve; And that where the total number of members of the Legislative Assembly of the State is less than twenty, the number of Ministers, including the Chief Minister, in the Council of Ministers in any State at the commencement of the Constitution shall not exceed five.

The Chief Minister is the most powerful functionary at the State Government. He is the executive head of the state. He is appointed by the Governor. Post the general election, the Governor, with the majority votes and elects its leader.

This person is then appointed as Chief Minister. In case, no particular party has the support, the Governor asks the leader of the single largest party to form the government. In case of a coalition, the group's leader is appointed as Chief Minister.

Dismissal of a Minister

The ministers of a state hold office during the pleasure of the Governor. The ministers are chosen by the Chief Minister, in practice it is the Chief Minister who decides to retain and whom to oust. Thus there are two provisions here:

- The Governor cannot dismiss a Minister against the advice of the Chief Minister.
- The Governor cannot retain a Minister against the wishes of the Chief Minister.

Powers of a Chief Minister

Being the leader of the ruling party of the state, the chief minister has been empowered by the Indian Constitution. Some of the powers of the Chief Ministers are as follows:

1. Head of the Council of Ministers

The chief minister is the head of the council of Ministers. The ministers are appointed by the Governor on the advice of the Chief Minister and he also has a free hand in appointing and dismissing his colleagues. The Chief Minister can reconstruct his Ministry as and when required.

He further has the right to demand the resignation of any of the ministers. The chief minister also controls the agenda for the Cabinet meetings. Furthermore, he coordinates policies of several Ministers and Departments.

▼ Advocate General

The Advocate General is the highest law officer in the state. He is responsible for the government in all its legal matters. He defends and protects the interests of the state. The office of the Advocate General in state corresponds to the office of the Attorney General of India. He must be a person who is qualified to be appointed a judge of a High Court.

The advocate general is appointed by the governor. The term of office of the advocate general is not fixed by the Constitution. He holds office during the pleasure of the governor. The remuneration of the advocate general is not fixed by the Constitution. The remuneration as the governor may decide.

- 1) The Governor of each State shall appoint a person who is qualified to be appointed a Judge of a High Court to be Advocate-General for the State.
- (2) It shall be the duty of the Advocate-General to give advice to the Governor upon such legal matters, and to perform such other duties of a legal character as may from time to time be referred or assigned to him by the Governor, and to discharge such duties on him by or under this Constitution or any other law for the time being in force.
- (3) The Advocate-General shall hold office during the pleasure of the Governor and shall receive such remuneration as the Governor may determine.

✓ STATE LEGISLATURE

The Constitution of India provides for a legislature in each State and entrusts the responsibility to make laws for the state. However, the composition of a state legislature can be different in different states. It can be either bicameral or unicameral. In case of a bicameral state legislature, the upper house is known as the State Legislative Council (Vidhan Parishad) and the lower house as the State Legislative Assembly. If there is only one House of the State Legislature, it is known as the State Legislative Assembly.

The normal term of Legislative is 5 years. However, it can be dissolved at any time. It can be suspended or dissolved when an emergency under A proclaimed in the state.

Qualifications of Members of Legislative Assembly

A person shall not be qualified to be selected to occupy a seat in the Legislative Assembly if he

- (a) is an Indian citizen;
- (b) is 25 years or above for Legislative Assembly, and is 30 or above for Council and
- (c) possess such other qualifications as may be prescribed by the Parliament.

Thus, the Representation of the People Act, 1951, has provided that a person is not qualified to be elected either to the Legislative Assembly or the Council unless he is himself a citizen of India and has no Legislative Assembly constituency in that State. A person can be disqualified for being elected as and for being a member of the Legislative Assembly or Legislative Council if

(a) holds an office of profit under GOI or any State Government, other than an office declared by the centre or any state or an office declared by a law of the State not to be an office of profit (many States have passed such laws declaring certain offices to be offices of profit); or
does not disqualify its holder for being a member of the Legislature of the State.

(b) is mentally unsound as declared by a competent Court

(c) is an insolvent

(d) is not an Indian citizen or has voluntarily got the citizenship of a foreign country or has made acknowledgement of adherence/allegiance to a foreign nation

system of the composition of the Council as provided for in the Constitution. The final power is given to the Parliament of the Union.

❖ Method of Abolition or Creation of a State Legislative Council

The power to establish or abolish the Legislative Council in a state belongs to the Parliament. It can do it by enacting a law. The Parliament, however, acts on the recommendation of the Legislative Assembly of the concerned state passes a desired resolution by a majority of not less than two-thirds of the members of the State Legislative Assembly present and voting.

Duration of Legislative Assembly & Legislative Council

It will be a partly nominated and partly elected body, the election being in accordance with the principle of proportional representation by the single transferable vote. Broadly speaking 5/6 of the total number of members of the Council shall be elected and 1/6 will be nominated.

The duration of the Legislative Assembly is five years. The Governor has the power to dissolve the Assembly even before the expiry of its term. The period of five years, if a proclamation of emergency is in operation, be extended by the Parliament by a period not exceeding one year at a time and not extending in any case beyond a period of six years after the proclamation has ceased to operate (Article 172(1)). Unlike the Legislative Council is not subject to dissolution. It is a permanent body. The members of the Legislative Assembly and Parliament by the due procedure. But no member of the Council as one-third of the members of the Council retire every second year. It amounts to a term of six years for each member. Thereafter, they can be getting re-elected on the expiry of his term.

(a) One-third of the total number of members of the Council would be elected by the people consisting of members of local bodies like the municipalities and the district

experience in matters like science, literature, cooperative movement, art

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A person can be disqualified for being selected as and for being a member of Legislative Assembly or Legislative Council of a State if he/she

(a) holds an office of profit under GOI or any State Government, other than an office declared by the centre or any state or an office declared by a law of the State not to be an office of profit (many States have passed such laws declaring certain offices to be offices of profit);

(b) is mentally unsound as declared by a competent Court

(c) is an insolvent

The State Legislature has got the power of making laws on the subjects Concurrent List. In this connection the real law-making powers are with the Legislative Assembly. Ordinary bills can be introduced in either of the Houses and become laws only when passed by the two Houses and signed by the Governor.

However, in practice, almost 95% bills are first introduced in the Legislative Council and then go to the Legislative Assembly after these get passed by the Legislative Council.

2. Financial Powers

The Legislative Assembly controls the finances of the State. A Money Bill can only be introduced in the Legislative Assembly.

3. Control over the Executive

The Legislative Assembly controls the State Council of Ministers. The Prime Minister is the leader of the majority party in the Legislative Assembly. He and most of the Ministers are taken from among its members of the Legislative Assembly.

They are collectively responsible before the Legislative Assembly. Ministers can remain in office so long as they enjoy the confidence of the Legislative Assembly. The Legislative Assembly controls the ministry through motions like call-attention motions, putting of adjournment motions, questions, no-confidence motions etc.

4. Amendment Powers

The State Legislative Assembly enjoys a role with regard to the amendment of the Constitution. Some parts of the Constitution can be amended by the Union. If half of the State legislatures ratify the amendment. If the Parliament is to amend the Constitution for the purpose of altering the boundary of a State, the opinion of the concerned State Legislative Assembly is also sought before the moving of such a bill in the Parliament.

Court, there are other courts which constitute the subordinate judiciary. Courts are of two types, namely, Civil and Criminal. The disputes of succession, ownership and other such rights come under the jurisdiction of Civil Courts and they dispose of these cases in accordance with the Civil Procedure Code. The disputes relating to murder, robbery, arson, cheating, assault and rape etc. These cases come under the jurisdiction of Criminal Courts in accordance with the Criminal Procedure Code and the Criminal Code. The Civil and Criminal Courts are graded into three each. The gradation is done according to the nature of the dispute, the amount of property in case of Civil Courts and the nature of the crime in case of Criminal Courts.

The first high court was the Calcutta High Court. The Bombay and Madras High Courts were established in the year of 1862. While there were 24 high courts, the number increased to 25 in 1956 due to the high court built in Amaravati. Delhi is the only Union Territory to have a high court.

Composition

The head of the High Court is the Chief Justice of the High Court. The number of judges is not fixed by the Constitution of India and leaves it to the discretion of the president.

Qualifications To Become A High Court Judge

A judge of the High Court should be a:

- Citizen of India,
- Holding a judicial office for not less than 10 years in a territory of India or
- An advocate of the High Court for at least 10 years in succession.

Appointment Of Judges

The judges and the Chief Justice of the High Courts are appointed officials.

Term of Office

A judge of the High Court holds his office until he attains the age of 62. He can resign by writing to the president. He can also be removed by the recommendation of the Parliament. A High Court judge after retirement can practice in the Supreme or High Court in which he has not served.

Process of Removal of Judges

A judge can be removed by the President on the recommendation of the committee of proved incapacity or misbehavior.

A motion to remove the judge of HC can be introduced in any house of Parliament. It can be introduced by at least 100 members in Lok sabha or 50 members in Rajya Sabha. It can be introduced.

The Speaker or Chairman may reject this proposal or set up a 3 member committee to look into the concerns.

When the committee finds him guilty, then the motion has to be passed by a special majority. Then, the President gives his assent and Judge of HC is removed.

Jurisdiction of the High Court

Original Jurisdiction

Article 226 defines the powers of the high court. It gives the power to issue writs. They have the power to issue orders or writs to 'any person, a corporation or a company which falls within the territories under their jurisdiction to enforce the Fundamental Rights.

These writs are-

Quo Warranto

This writ is to inquire into the legality of the claim of a person or public body from holding an office which they are not entitled to. This writ is applicable only to public offices and not to private offices.

The Supreme Court held that the HC cannot issue Quo warranto writs on indisputable facts.

Certiorari

This writ is passed to squash an order passed by an inferior court.

Appellate Jurisdiction

In civil cases, an appeal can be made against a district court's decision. In criminal cases, an appeal can be made directly from a subordinate court if the dispute has a value higher than Rs. 10,000 or if there is a substantial question of law.

For criminal cases, appeals can be made against the Session and Additional Sessions Judge's decision if the sessional judge has given imprisonment for 7 years or more, or a fine of Rs. 10,000 or more, or punishment.

They also have jurisdiction over cases relating to State and Central Government. In constitutional cases, the case must have a substantial question of law in order to be heard by the high court.

The relation between the Supreme Court and the High Courts

SUPREME COURT

- The Supreme Court is the apex court of Justice.

- The Supreme Court is the highest court of appeal and there is no appeal from its decisions.
- ## **HIGH COURT**

- The High Court is the highest court of authority in the state its decisions are final.
- The Chief Justice of the High Court heads it.
- The High Court has supreme power over only the tribunal and officers in its state.
- The Chief Justice of India is appointed by the President on the recommendation of the Council of Ministers.
- The judges of the high court are appointed by the President of India on the recommendation of the Chief Justice of India, the governor of that state and the Chief Justice of India.
- The judges of the high court retire at 62.

